

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

CARTER ROBERTSON,

Respondent

) Case Number: FCS-19-353895

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

*** DE NOVO HEARING *** SET RE: CHILD SUPPORT PER REVIEW OF COMMISSIONER'S
FINDINGS OF FACT AND RECOMMENDATION FILED 07/14/26

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are the County of San Francisco, Respondent Carter Robinson (Father),
and Other Parent Delilah Alison Chung (Mother).
- 2) On 6/26/2019, the Department of Child Support Services (DCSS) filed a Summons and
Complaint alleging that Respondent is the father of Cameron (DOB: 12/6/2017, age 8) and
seeking to establish a child support order.
- 3) On 8/22/2019, Respondent filed an Answer to Complaint admitting that he is the parent of
Cameron but disagreeing with the DCSS' request to establish child support. Respondent also
stated in his Answer, "Don't mind submitting to genetic testing."
- 4) On 10/22/2019, DCSS filed a Document in Support of Child Support Action to which is attached
a LabCorp test result showing that Respondent's probability of paternity of Cameron is 99.99%.
- 5) At the 10/30/2019 hearing, all parties appeared for a hearing before Commissioner Wightman.
Respondent appeared with his attorney Sean Joyce. The minutes reflect that a general advisement

1 was given regarding Commissioner Wightman acting as Judge Pro Tem. A Judgment Regarding
2 Parental Obligations was filed that same day, which names Respondent and Other Parent as
3 Cameron's parents and which requires Respondent to pay Petitioner \$1,000 per month in child
4 support.

5 6) On 1/13/2020, Father filed a Request for Order seeking to modify the existing child support
6 order.

7 7) At the 2/25/2020 hearing, an attorney for SF DCSS was present but Father and Mother were not.
8 The minutes reflect that a general advisement was given regarding Commissioner Wightman
9 acting as Judge Pro Tem. An Order After Hearing filed that same day reduced the monthly child
10 support obligation to \$463 and set a review hearing for 5/5/2020.

11 8) At the 5/5/2020 hearing, all parties appeared. The minutes reflect that a general advisement was
12 given regarding Commissioner Wightman acting as Judge Pro Tem. An Order After Hearing was
13 filed that same day increased the monthly child support obligation to \$650. To date, this order has
14 not been modified.

15 9) Now on for hearing is Father's Request for Order filed 5/29/2026 wherein Father asks the Court
16 to make the following orders:

- 17 a. Enter an immediate finding that Case No. FCS-19-353895 is void from inception.
18 b. Order SF DCSS to immediately cease all enforcement activity in any jurisdiction.
19 c. Order SF DCSS to notify the Clark County District Attorney's Office that Nevada Case
20 No. 3200415534 has no valid predicate order and all Nevada enforcement must cease.

21 10) Father makes various arguments in support of his requested orders, including:

- 22 a. Mother confirmed in a written communication received 7/28/2022 that she and the child
23 had been living in Denver, Colorado "for a long while." Father states he moved to
24 Nevada in October 2023. Father contends this Court lost jurisdiction by operation of law
25 in October 2023 under Family Code section 5700.205 and every enforcement action since
26 that date including Nevada Case No. 3200415534 "opened December 2025 and
27 continuing through May 2026" was taken without jurisdictional authority.
28 b. Under Lucia v. SEC, 585 U.S. 237 (2018), officers exercising significant authority under
29 federal law must be appointed pursuant to Article II of the United States Constitution.

Commissioner Wightman operates under Title IV-D of the Social Security Act, a federal program. Commissioner Wightman was appointed under California state Court rules, not pursuant to Article II of the United States Constitution and her appointment does not satisfy constitutional requirements. Therefore, every order entered by Commissioner Wightman is void.

c. Father was never advised of his right to object or to demand an Article III judicial officer and any verbal responses made by Father during the 10/30/2019 proceeding reflected “situational compliance in an unfamiliar institutional setting, not the knowing, intelligent, and voluntary waiver required by Johnson v. Zerbst, 304 U.S. 458 (1938), as Respondent was never advised that he possessed the right to object to or demand adjudication before constitutionally appointed Article III judge.” Therefore, every order entered by Commissioner Wightman is void.

d. Father served SF DCSS with a Bill of Articles and SF DCSS did not respond. Father states that SF DCSS’ silence constitutes a constructive admission that the Agency cannot demonstrate constitutional authority for any enforcement action taken against Father.

11) On 6/5/2026, SF DCSS filed a Proof of Service by Mail reflecting that Father’s Request for Order was mailed to Mother on 6/3/2026.

12) On 6/30/2026, Father appeared for a hearing before Commissioner Rahim in Dept. 416 on his 5/29/2026 Request for Order. Mother also appeared, along with an attorney for SF DCSS. Father objected to Commissioner Rahim hearing the matter. Commissioner Rahim heard argument and made findings and recommendations, which were memorialized in the Findings and Recommendation of Commissioner filed that same day.

13) On 7/13/2026, Father filed a Notice of Objection and requested that the matter be set for a de novo hearing before a superior court judge.

14) Per the Review of Commissioner’s Findings of Fact and Recommendation filed on 7/14/2026, Father’s 5/29/2026 Request for Order was set for a de novo hearing on 7/23/2026 in Dept. 404. The Review of Commissioner’s Findings of Fact and Recommendation, along with the Tentative Ruling Instructions, were mailed by the Court to SF DCSS, Father, and Mother on 7/14/2026.

1 **B. Findings and Order**

- 2 1) Family Code section 5700.205 governs a California tribunal's ability to modify a child support
3 order; it does not govern jurisdiction to enforce a child support order. Rather, Family Code
4 section 5700.206 specifically states that this Court has authority to request a tribunal of another
5 state (e.g., Nevada) to enforce a controlling child support order if the order has not been modified
6 by a tribunal of another state that assumed jurisdiction pursuant to the Uniform Interstate Family
7 Support Act. As this Court is unaware of any order modifying the May 2020 child support order,
8 this Court has continuing jurisdiction to seek its enforcement.
- 9 2) Lucia v. SEC (2018) 585 U.S. 237 is not applicable here as that case concerns the appointment of
10 administrative law judges under the Appointments Clause (Article II) of the U.S. Constitution and
11 has no application to California superior court commissioners appointed pursuant to California
12 law. Moreover, there is no constitutional right to have a California family law matter heard by an
13 Article III federal judge.
- 14 3) The Court does not find that SF DCSS' lack of response to Father's Bill of Articles constitutes a
15 constructive admission that the SF DCSS cannot demonstrate constitutional authority for any
16 enforcement action taken against Father.
- 17 4) Father appeared at the prior 10/30/2019 hearing (with an attorney) and at the 5/5/2020 hearing (in
18 pro per). The minutes for those hearing dates reflect that a general advisement was given
19 regarding Commissioner Wightman acting as Judge Pro Tem. Father has presented no evidence to
20 refute this statement in the minutes. Moreover, Father subsequently participated in those hearings
21 and therefore waived his right to have the matter heard by a superior court judge.
- 22 5) For the reasons stated above, Father's Request for Order filed 5/29/2026 is denied in its entirety.
- 23 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DIVINA VIDENA,

Petitioner

VS.

JULIAN CHUNG,

Respondent

) Case Number: FLD-24-397237

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom video at 9AM on 7/23/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Julian Chung (Father) and Respondent Divina Videna (Mother) have one minor child together, Athena (DOB 8/3/2017, age 8). In an order filed 10/8/2024, the juvenile court awarded sole legal and physical custody of Athena to Mother with parenting time for Father every Sunday from 10AM to 6PM. The juvenile court encouraged the parties to use Our Family Wizard or a similar app to communicate, ordered that their communications may be recorded, and modified the “parties' restraining orders . . . to include [a] ‘carve-out’ for visit exchanges and communication regarding visitation.”
- 2) On for hearing is Mother’s 4/27/2026 request for a change in Father’s parenting time to every Sunday from 12PM to 6PM so that Athena can attend religious activities on Sunday morning. She also seeks an order for the parties to use the Talking Parents app for all parenting-related matters;

1 she states Father has failed to consistently use the app or respond to her messages in a timely
2 manner.

- 3 3) Father has filed a response in which he disputes Mother's statements about his use of the Talking
4 Parents app. He also states that Mother cancels his visits without good reason, for example, to
5 allow Athena to attend a birthday party. Father has submitted a transcript of a video in which
6 Athena states that Mother told Father that Athena was sick and canceled a visit, when she was
7 actually not sick.

8 **B. Findings and Orders**

- 9 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
10 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
11 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
12 child is the United States.
- 13 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 7/23/2026 in**
14 **Department 404.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BLAKE MCCLENDON,

Petitioner

VS.

MICHELLE MCCLENDON,

Respondent

) Case Number: FDI-20-793695

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

NOTICE OF MOTION AND MOTION TO BE RELIEVED AS COUNSEL - CIVIL (MC-051)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On for hearing is Petitioner Blake McClendon's attorney Benjamin Kuhm's Motion to be Relieved as Counsel filed 5/20/2026.
- 2) Mr. Kuhm states that an irreconcilable breakdown in the attorney-client relationship has occurred and Petitioner has stopped communicating with Mr. Kuhm's office.
- 3) According to the Proofs of Service filed 5/26/2026, Mr. Kuhm's Motion to be Relieved as Counsel and supporting papers were mailed to Petitioner at 3660 Ross Road Palo Alto, CA 94303 and emailed to Petitioner at blake.legal@protonmail.com.
- 4) Mr. Kuhm states that his motion was served at Petitioner's last known address, but he has not been able to confirm the address is current or to locate a more current address, despite mailing the papers to Petitioner, calling Petitioner's last known telephone number, and contacting Petitioner's mother.

1 **B. Findings and Order**

- 2 1) The Court finds that service of Mr. Kuhm's motion to be relieved as counsel satisfies the service
- 3 requirements set forth in California Rules of Court, rule 3.1362(d)(1)(B).
- 4 2) The Court hereby grants Mr. Kuhm's motion to be relieved as counsel for Petitioner effective
- 5 7/23/2026.
- 6 3) The Court will prepare the Findings and Order After Hearing as well as the Order Granting
- 7 Attorney's Motion to be Relieved as Counsel.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEN ERICSON,

Petitioner

VS.

ARLENE ERICSON,

Respondent

) Case Number: FDI-21-795007

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Ken Ericson and Respondent Arlene Ericson married on 2/1/1997. The parties agree they separated in 2020, for a marriage of 23 years. The parties have one minor child, Kristina (DOB: 2/25/2010, age 16). Father is represented by attorney Anne Fokstuen (Notice of Limited Scope Representation filed 9/5/2023). Mother is represented by attorney Crisostomo Ibarra (Substitution of Attorney filed 2/11/2026).
- 2) At the 11/21/2023 hearing (per the Findings and Order After Hearing filed 12/6/2023), the Honorable Judge Tong ordered Father to pay Mother guideline child support of \$1,357 per month and temporary non-guideline spousal support of \$500 per month, for total payments of \$1,857 per month effective 11/15/2023. The parties were also ordered to share 66 (Father) / 34 (Mother) all reasonable uninsured healthcare costs for the child. Judge Tong ordered Mother to seek work. Judge Tong further found that Father cannot afford to make any contribution to Mother's attorney's fees and denied Mother's request for need-based attorney's fees.

- 1 3) At the 2/27/2025 hearing (per the Findings and Order After Hearing filed 7/7/2025), the
2 Honorable Judge Costin modified the child support award effective 6/1/2025 to include an
3 imputation of part-time minimum wage income to Mother (of \$1,493.60 per month) and to
4 increase the timeshare percentage for Father to 50%. The Court therefore ordered Father to pay
5 Mother \$840 per month for guideline child support and \$500 per month for temporary non-
6 guideline spousal support, for total support owed of \$1,340 per month. Judge Costin also awarded
7 to Mother \$10,000 per month in need-based attorney's fees and costs, payable at a rate of \$1,000
8 per month. Judge Costin noted that it was making this award to Mother, "an unrepresented party,"
9 to "enable her to retain an attorney." Judge Costin further noted, "The Court reserves jurisdiction
10 to issue Mother additional attorney fees once Counsel is retained."
- 11 4) At the 12/11/2025 hearing, the Honorable Judge Chan modified child support effective
12 10/25/2025 (the date Father's timeshare decreased to 1%) to \$1,463 per month. Judge Chan
13 maintained the \$500 per month spousal support order. Therefore, Father was ordered to pay
14 \$1,963 per month in total support to Mother effective 10/25/2025.
- 15 5) At the 2/19/2026 hearing, the Honorable Judge Mori ordered Kristina to remain at her current
16 school at this time and ordered Mother to continue to drive Kristina to and from school on
17 Tuesdays, Wednesdays, and Thursdays, unless the parties agree in writing to a different
18 transportation schedule.
- 19 6) Now on for hearing is Mother's Request for Order filed 5/19/2026 seeking (a) guideline spousal
20 support and (b) \$36,000 in need-based attorney's fees. Mother states, "The \$10,000 was
21 exhausted, with another \$10,820 balance. Need \$10,000 to engage forensic CPA."
- 22 7) On 5/11/2026, Mother filed an Income and Expense Declaration. Mother states that she is 57
23 years old and has a college degree in finance / economics. Mother states she currently works 16
24 hours per week as an office assistant for JNC Glass Works and earns on average \$900 - \$100 per
25 month. Mother also states that she works as a substitute teacher once or twice a month and is paid
26 \$115 - \$270 per day. Mother states that last month she earned \$1,500 and \$200 in overtime pay.
27 Mother states that on average Father pays her \$250 per month for mileage to drive Kristina to and
28 from school in Walnut Creek. Mother states that her monthly expenses total \$3,840 per month.
29 She has no housing expenses because the home she lives in is fully paid off. Mother reports

1 having \$400 in cash savings and \$1,000,000 in real property holdings with Father. Mother reports
2 owing \$950 to the IRS, \$15,000 to her attorney, and \$5,000 to Macy's for household expenses
3 and clothing. Mother states that she has paid her attorney \$10,000 to date and still owes \$10,820.

4 8) On 7/9/2026, Father filed a Responsive Declaration asking the Court to deny Mother's requests.
5 Father states that he is currently unable to pay his own legal fees and owes over \$15,000. Father
6 states that Mother's disability or medical claims are unverified.

7 9) On 7/13/2026, Father filed an Amended Income and Expense Declaration. Father states that he is
8 65 years old and has a college degree. Father reports the following income: \$1,667 per month in
9 salary / wages, \$2,468 per month in Social Security, \$1,397 per month in "social security
10 auxiliary benefits for daughter," and \$5,321 per month through his book-keeping business. Father
11 reports that his monthly expenses total \$11,805, which includes \$2,500 per month for rent and
12 \$5,435 per month for debt payments. Father reports having \$4,000 in cash savings and \$775,000
13 in real property. Father reports owing \$19,000 for a car loan, \$15,000 for legal fees, \$10,000 for a
14 loan from his Mother, and \$27,200 in taxes. Father states he has paid his attorney \$35,000 to date
15 using "monthly earnings," and still owes his attorney \$15,000.

16 10) On 7/16/2026, Mother filed a Reply Declaration. Mother states that she suffered a work accident
17 at her part-time job which caused a concussion. Mother states she was placed off work from
18 5/15/2026 – 7/3/2026 and from 7/15/2026 – 8/15/2026. Mother requests that the Court transfer
19 their daughter from her school in Walnut Creek to a school in San Francisco which would allow
20 her to work 8 AM to 5 PM, 5 days per week instead of waiting in parking lots from 9 AM until 2
21 PM in Walnut Creek. Mother states that because Kristina's school in Walnut Creek, Mother can
22 only work 2 days per week and cannot qualify for a HELOC on her home. Mother states SFUSD
23 has already placed Kristina in a school in San Francisco pending court approval and the school
24 year starts mid-August. Mother also states that Father is underreporting his income from his
25 business.

26 11) There is a Mandatory Settlement Conference currently scheduled for 7/31/2026.

27 **B. Findings and Order**

28 1) The Court notes that attorney Anne Fokstuen has exceeded the scope of the Notice of Limited
29 Scope Representation filed 9/5/2023 (which states that she will represent Father at the 9/12/2023

1 and 9/14/2023 hearings and for any continuance of those hearings, and she will represent Father
2 for the establishment of child and spousal support). If Ms. Fokstuen desires to continue
3 representing Father in this proceeding, she must file an updated Notice of Limited Scope
4 Representation or a Substitution of Attorney.

- 5 2) The Court notes that Mother's Request for Order filed 5/19/2026 did not expressly seek a
6 modification of the current spousal support order. Rather, it sought to establish a spousal support
7 order (even though Father has been under an order to pay Mother non-guideline temporary
8 spousal support since 11/15/2023). Even in her Reply Declaration filed 7/16/2026, wherein
9 Mother details that she has been placed off work for 49 days by her doctor, Mother does not
10 specify what exactly she is requesting with respect to spousal support. The Court also notes that
11 Mother did not explain why she needs a forensic accountant appointed in this case, nor did her
12 attorney provide the information required under California Rules of Court, rule 5.427(b)(2) for
13 this Court to determine whether the fees incurred to date and estimated to be incurred are just,
14 necessary, and reasonable.

- 15 3) The hearing on Mother's 5/19/2026 Request for Order is hereby continued to **Tuesday,**
16 **10/13/2026 at 9:00 AM in Dept. 404.** If the parties are unable to reach a full agreement at the
17 Mandatory Settlement Conference currently set for 7/31/2026, the parties are ordered to do the
18 following:

- 19 a. At least 25 days before the next hearing date, Mother shall file and serve an updated
20 Income and Expense Declaration, a declaration detailing what exactly she is asking the
21 Court to order with respect to spousal support, and a proposed Statement of Support
22 Calculations. Mother shall attach to her declaration doctor's notes detailing the days she
23 has been placed off work. Mother's attorney shall file and serve a declaration containing
24 the information required under California Rules of Court, rule 5.427(b)(2), including a
25 summary of the hours spent on the case to date and the tasks performed, as well as
26 Mother's attorney's estimate of the number of hours of work and tasks that are needed to
27 bring this case to completion.
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1 b. At least 10 days before the next hearing date, Father shall file and serve an updated
2 Income and Expense Declaration, a declaration responding to any new declarations filed
3 by Mother, and a proposed Statement of Support Calculations.

4 4) Mother's request that the Court change Kristina's school is beyond the scope of her Request for
5 Order filed 5/19/2026 and her request is denied without prejudice to a new Request for Order.

6 5) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YASSINE GHALEB,

Petitioner

VS.

ARDANNA GHALEB,

Respondent

) Case Number: FDI-23-797499

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TO CHANGE TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,
VISITATION (PARENTING TIME), SHORTENING TIME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Yassine Ghaleb (Father) and Respondent Ardanna Ghaleb (Mother) have two minor children together, Issa (DOB: 2/18/2015, age 11) and Yusra (12/23/2018, age 7). The parties have joint legal custody of the children.
- 2) On 11/5/2024, the Court ordered that the children shall be with Father in Antioch during the week and spend alternating weekends with Mother in San Francisco, from Friday school pick up to Monday morning drop off. Since then, there were several hearings at which the Court maintained the parenting time schedule and issued additional orders including a Tier II of the children's afterschool program and a right of first refusal.
- 3) On 3/25/2026, Father filed an ex parte request for sole legal custody and sole physical custody, with virtual weekend visits for Mother. He stated that Child Protective Services (CPS) "became involved in early February due to concerns of [Mother's] neglect and physical abuse," including "reports of physical discipline involving foreign objects and verbal abuse toward the child(ren)."

1 He stated that Mother was also leaving the children with inappropriate or unsafe caregivers and
2 failing to ensure their regular school attendance. Mother filed a response in which she denied all
3 CPS allegations and stated the children had consistently attended school during her parenting
4 time and were absent only when they were sick and late when there was traffic. The Court denied
5 Father's ex parte request pending a hearing, which was set for 5/21/2026.

6 4) The parties attended mediation and reached a partial agreement that Mother shall have parenting
7 time on alternating weekends from pick up on Saturday at 10AM to drop off on Sunday at 6PM.
8 (See Stipulation and Order filed 5/11/2026.) The parties further agreed to have the matter set for
9 further hearing on 7/21/2026. The Court ordered the parties to file and serve update declarations
10 10 days before the 7/23/2026 hearing.

11 5) On 7/21/2026, Father filed an update declaration in which he reiterates his request for sole legal
12 and physical custody of the children. Documents attached to his declaration show that CPS found
13 the allegations against Mother were "inconclusive" and closed the matter on 6/18/2026.

14 **B. Findings and Orders**

15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
16 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
17 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 children is the United States.

19 2) The Court finds it is in the children's best interests to maintain the current order for joint legal
20 custody to the parties. The Court also maintains the parenting time order set forth in the
21 Stipulation and Order filed 5/11/2026, under which Mother has parenting time on alternating
22 weekends from Saturday at 10AM to Sunday at 6PM.

23 3) If either party has a new request relating to custody and parenting time, they may file a new
24 request for order.

25 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CLAY MONTGOMERY,

Petitioner

VS.

CAITLIN MONTGOMERY,

Respondent

) Case Number: FDI-24-799969

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REVIEW OF CUSTODY AND VISITATION; CHILD SUPPORT ISSUE(S)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

I. Custody and Visitation

- 1) The custody and parenting time hearing is continued to **7/30/2026 at 9AM in Department 404** due to the Child Protective Services investigation. The parties shall check the Court's tentative ruling at 2PM on 7/29/2026.

II. Child Support

A. Procedural History

- 1) On 4/29/2025, Father filed a Request for Order seeking, among other orders requested, a guideline child support order.
- 2) On 4/15/2025, Father filed an Income and Expense Declaration stating he earns an average monthly salary of \$3,517, receives \$167 in monthly pension/retirement funds, receives \$465 per

1 month in military allowance, pays \$30 in monthly health insurance premiums, has \$19,773 in
2 cash assets, pays \$1,487 in average monthly expenses, and pays \$382 in additional childcare
3 expenses for work.

4 3) On 6/10/2025, Mother filed a Responsive Declaration agreeing to pay guideline child support.
5 Mother states she began working in February and, beginning in April, she began sending
6 “monthly payments,” toys, books, and clothes for Sophia.

7 4) At the prior 7/22/2025 hearing (per the Findings and Order After Hearing filed 7/31/2025), the
8 Court found it did not have sufficient information to adjudicate child support as Mother has not
9 filed an Income and Expense Declaration and neither party had filed Statements of Support
10 Calculation and continued the hearing to 9/4/2025.

11 5) At the prior 9/4/2025 hearing (per the Findings and Order After Hearing filed 9/16/2025), the
12 Court set a review hearing on 1/13/2026 and ordered the parties to file and serve update
13 declarations including information on their location, job status, and housing situation as well as
14 updated Income and Expense Declarations.

15 6) On 12/8/2025, Mother filed an Income and Expense Declaration stating she was unemployed due
16 to “corporate layoffs.” On 12/18/2025, Father filed an Income and Expense Declaration stating
17 that his prior employment ended on 8/3/2025 due to “end of contract.”

18 7) On 6/2/2026, Mother filed an Income and Expense Declaration stating that she began working as
19 a shop associate for Bar Antz LLC in September 2025. Mother states that she works 16 hours per
20 week and earns \$20 per hour, which averages approximately \$1,400 per month. Mother also
21 states that she pays \$1,200 per month in expenses.

22 8) On 6/12/2026, Father filed an Income and Expense Declaration stating that he continues to be
23 unemployed and does not earn any income. Father states that he has \$800 per month in expenses
24 which are paid by others (his parents). Father attached a declaration to his Income and Expense
25 Declaration which states, “Respondent previously earned at a level of \$111,000 annually during
26 her employment in the cybersecurity field... from April-August 2025.” Father also notes that
27 Mother’s prior Income and Expense Declaration disclosed \$3,000 in cash savings while her June
28 2026 Income and Expense Declaration disclosed \$30,000 in cash savings. Father writes that these
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1 discrepancies raise legitimate questions regarding the accuracy and completeness of Mother's
2 disclosures.

- 3 9) The Court has also been informed that both parties are currently students at universities and are
4 hoping to obtain additional education and degrees to obtain higher earning potential.

5 **B. Findings and Order**

- 6 1) According to the XSpouse calculation attached hereto and incorporated herein, the Court finds
7 that guideline child support would amount to \$229 per month, payable by Mother to Father.
8 However, if the Court were to make that order, Mother would only have \$1,040 in net spendable
9 income, which would not be sufficient for Mother to live on. In light of this, and the fact that
10 Father is currently fully financially supported by his parents, the Court finds good cause to set
11 child support at \$0.
12 2) Neither party has offered evidence regarding the other party's current ability or opportunity to
13 earn income and so the Court will not impute income to either party at this time.

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15 **III. Preparation of Order**

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17 1) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	1	0	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	1269	1416
Filing status	HH/MLA	<-MFS	GUIDELINE	Percent change	0%	12%
# exemptions	2 *	1 *	Nets(adjusted)	Father		
Wages+salary	0	1400	Father	0		
Self-employed income	0	0	Mother	1269	229	258
Other taxable income	0	0	Total	1269	229	258
TANF+CS received	0	0	Support	Change from guideline	0	29
Other nontaxable income	0	0	Addons	0	18%	18%
New spouse income	0	0	Guideln CS	229	0%	20%
401(k) employee contrib	0	0	S.Clara SS	0	Total taxes	0
Adjustments to income	0	0	Total	229	Dep. exemption value	0
SS paid prev marriage	0	0	CS range: 99-229	# withholding allowances	0	0
CS paid prev marriage	0	0	Settings changed	Net wage paycheck	0	0
Health insurance	0	0		Mother		
Other medical expense	0	0		Payment cost/benefit	-229	-110
Property tax expense	0	0		Net spendable income	1040	1158
Ded interest expense	0	0	Proposed	Change from guideline	0	118
Charitable contributions	0	0	Tactic 9	% of combined spendable	82%	82%
Misc tax deductions	0	0	CS	258	% of saving over guideline	0%
Qual bus income ded	0	0	SS	0	Total taxes	131
Required union dues	0	0	Total	258	Dep. exemption value	0
Mandatory retirement	0	0	Saving	148	# withholding allowances	0
Hardship deduction	0 *	0 *	Releases	1	Net wage paycheck	1197
Other GDL deductions	0	0	Released to Mother			
Child care expenses	0	0				

Mother pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	100 - 0	0	0	0	Father	229	Mother	229	Mother
	100 - 0	0	0	0	Father	229	Mother	229	Mother

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

OLGA PRAKAPENKAVA,

Petitioner

VS.

TARAS PILIPENKO,

Respondent

) Case Number: FDI-26-803033

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Olga Prakapenkava and Respondent Taras Pilipenko married on 12/19/2024. Petitioner contends the parties separated on 4/27/2026, for a marriage of 1 year and 4 months.
- 2) On for hearing is Petitioner's Request for Order filed 5/19/2026 seeking temporary spousal support in the amount of \$2,000 per month.
- 3) On 7/20/2026, Petitioner filed a declaration stating, "This is to withdraw form FL-300 file[d] on 05/29/2026 and cancel the hearing scheduled for 7/23/2026."
- 4) There is no Proof of Service on file demonstrating service of Petitioner's Request for Order filed 5/19/2026 or her declaration filed 7/20/2026.
- 5) Respondent did not file a Responsive Declaration.

B. Findings and Order

- 1) Petitioner's Request for Order filed 5/19/2026 is dismissed without prejudice.
- 2) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANNIKKA MCALLISTER,

Petitioner

VS.

DERRICK BENSON,

Respondent

) Case Number: FDV-24-818009

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME), SEE ATTACHMENT 8 - ADDITIONAL ORDER REQUESTED

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom video at 9AM on 7/23/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Annikka McAllister (Mother) and Respondent Derrick Benson (Father) have two minor children together, Michael (DOB 8/30/2017, age 8), and Marcus (DOB 8/10/2022, age 3). The Court dismissed Mother's request for a Domestic Violence Restraining Order (DVRO) against Father after she did not appear at the DVRO hearing; however, the Court maintained its prior order for sole legal and physical custody to Mother with one-hour, weekly supervised visits for Father at Rally Family Visitation Services (Rally).
- 2) On 10/15/2025, the Court ordered that Father may have his one-hour, weekly supervised visits at either Rally or at Healthy Families Happy Families (Healthy Families). On 10/17/2025, the Court issued a 3-year DVRO against Father protecting Mother and the children. On 2/4/2026, the Court

maintained its prior order for supervised visits at either Rally or Healthy Families. On 5/13/2026, the Court maintained the Rally order and awarded Father an additional 2 hours of supervised visits per week through Happy Families.

- 3) On for hearing is Father's request filed 5/1/2026 seeking a change in custody and parenting time, a minimum of 2-3 hour visits, a makeup policy for missed visits, a step-down plan from supervision toward less restrictive visitation, access to the children's medical, education, and therapy records, and minor's counsel for the children, a speech evaluation for Marcus, a custody evaluation, and an evidentiary hearing as the Court deems appropriate or necessary.
- 4) Mother opposes Father's requests, stating she was trafficked and sexually and physically abused by Father, who is 19 years older than she is. Mother states that Father kidnapped her and their child and that law enforcement became involved. Mother states the current order is necessary for the children's safety. She states that Marcus is already enrolled in speech-related services and she is perusing an IEP assessment through his school. Mother states she objects to the appointment of minor's counsel because the children already have substantial court protections in place.
- 5) Father has filed two supplemental declarations. He states the delays and difficulty in coordinating visits through Rally and Healthy Families have impacted his ability to demonstrate successful visits. He seeks joint legal custody and reiterates his requests for access to school and medical records, a step-up parenting time schedule, and other requests.
- 6) Mother has filed a declaration requesting that Rally visits be discontinued (she states Fridays no longer work for her for religious reasons and because she cares for her elderly uncle) and that the 2-hour, Sunday visits continue.
- 7) On 7/17/2026, Father filed a reply in which he reiterates many of his requests. In addition, he states that Mother was 45 minutes late to a 6/5/2026 Rally visit and that Rally canceled his 7/17/2026 visit and informed him that Mother was no longer available on Fridays. Father states he immediately completed all necessary steps in case the visits need to be rescheduled.
- 8) The parties attended mediation and were unable to reach an agreement.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child is the United States.

- 3 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 7/23/2026 in**
4 **Department 404.**